



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 21, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202105999 (Incident Date: September 23, 2021) regarding Police Officer Stephanie Vacchio, Tax No. 953511 (DADS No. 2023-27800)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the single allegation that Officer Vacchio improperly searched an individual.

In this matter, a review of body-worn camera video revealed that Police Officer Vacchio was directed by a Lieutenant to search an individual who had just exited an apartment. Officers were at the scene to investigate multiple stabbings and a shooting that had just occurred. The officers had probable cause to believe that an attempted murder suspect had fled into the apartment with a firearm, and were in the process of having the Emergency Service Unit respond to safely retrieve any occupants. Because the searched individual had just left the apartment, the Lieutenant was concerned that the individual may have had the firearm on her person and therefore directed Officer Vacchio to search her. In complying with the directive of the Lieutenant, who was present, Officer Vacchio briefly searched the individual, including having her remove her shoes to ensure that no weapon was secreted therein. The search of an individual's shoes is part of a search of an individual and therefore was, in this matter, in compliance with the Lieutenant's directive, and performed under his direct supervision. It must be noted that later, after executing a search warrant at the location and interviewing the suspect, the suspect confirmed that he had, if fact, fled with a firearm into the apartment and had then thrown the firearm out of a window.

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Therefore, based on the foregoing, Police Officer Vacchio will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 212-11 (Investigative Encounters/Search).

Yours truly,

A handwritten signature in black ink, appearing to read 'DCyhr', is written over the printed name 'Lourdes Soto'.

Lourdes Soto

Deputy Chief

Commanding Officer

Police Commissioner's Office